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European Patent Application No. 22817399.3
Ophthalmic device
AVISI LTD.

We refer to the Communication pursuant to Article 94(3) EPC dated 9 December 2025, and respond by way of the following comments and amendments.

Please replace the set of claims currently on file with the enclosed replacement set. Marked-up versions of the replacement claims are also enclosed for the Examiner's convenience.

Amendments

Claim 1 has been amended to recite:

1. An ophthalmic device (300, 400, 600, 800, 900, 1000, 1100, 1200, 1300, 1400, 1500, 1600, 1700, 1800, 1900, 2000, 2100, 2200, 2300, 2400, 2500, 2600, 2700, 2900, 3000, 3100, 3800, 3900, 4000, 4100, 4200, 4300, 4400, 4500, 4600, 4700, 4800, 4900, 5000, 5100, 5200, 5300, 5400, 5500, 5600, 5700, 5800, 5900, 6000, 6100, 6200, 6300, 6400, 6500, 6600, 6700, 6900, 7000, 7100, 7200, 7300, 7600) ***configured to reside on a bulbar conjunctiva and underneath the eyelid, the device*** *comprising:*
a body having:
a posterior surface (316, 616, 1316, 1416, 1516, 2116, 2216, 2316, 2416, 2718, 2718a, 2718b, 3016, 3116, 3816, 3916, 4016, 4116, 4216, 4316, 4416, 4516, 4616, 4716, 4816, 4916, 5016, 5116, 5216, 5316, 5416, 5516, 5616, 5716, 5816, 5916, 6016, 6116, 6216, 6316, 6916, 7016, 7116, 7216, 7616) which is adjacent to an eye surface when said ophthalmic device is worn;
an anterior surface (318, 618, 714, 1318, 1418, 1518, 2318, 2418, 2716, 2910, 2912, 2616, 2926, 3018, 3118, 4318, 4418, 4518, 4618, 4718, 4818, 4918, 5018, 5118, 5218, 5318, 5418, 5518, 5618, 5718, 5818, 5918, 6018, 6118, 6218, 6418, 6518, 6618, 6918, 7018, 7118, 7218) defining a height of said body above said eye surface; and

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a retention portion (336, 436, 636, 1436, 2336, 2536, 2736, 2737, 5936, 6136), configured to reside between an eyelid and said eye surface, said retention portion (336, 436, 636, 1436, 2336, 2536, 2736, 2737, 5936, 6136) bordered by a portion of said anterior surface (318, 618, 714, 1318, 1418, 1518, 2318, 2418, 2716, 2910, 2912, 2616, 2926, 3018, 3118, 4318, 4418, 4518, 4618, 4718, 4818, 4918, 5018, 5118, 5218, 5318, 5418, 5518, 5618, 5718, 5818, 5918, 6018, 6118, 6218, 6418, 6518, 6618, 6918, 7018, 7118, 7218), ***said retention portion*** *having a height (624, 662, 654, 658) difference of at least 1mm over at most a 1mm distance (652, 656, 664), with the height difference measured relative to a plane on which the relaxed device rests.*

Summary of the amendments:
1. the language "***configured to reside on a bulbar conjunctiva and underneath the eyelid***" has been added to the preamble.
2. the language "***said retention portion***" has been added to resolve clarity issue without adding matter.
3. The last two features of the claim have been cancelled without adding matter (e.g. with reference to original PCT claim 1).

Examples for the basis for the amendments can be found in the following paragraphs:
"In some embodiments, the device is configured to reside on a bulbar conjunctiva and underneath the eyelid." Page 15, lines 26-27

Claim 5 has been amended to recite:
5. The ophthalmic device according to any one of claims 1-4, ***wherein, when in residence on said eye surface, said anterior surface is adjacent to an inner surface of said eyelid, and said retention portion is held in position by a tarsal plate****.*

Examples for the basis for the amendments can be found in the following paragraphs:
"Example 20. The ophthalmic device according to any one of examples 1-19, wherein, when in residence on said eye surface, said anterior surface is adjacent to an inner surface of said eyelid, and said retention portion is held in position by a tarsal plate." Page 3, lines 14-16. Original PCT claim 20 is also referred to.

Claim 8 has been amended to recite:
*8. The ophthalmic device according to any one of claims 1-7, wherein an extent of said body is 2-8mm****, and wherein the extent of the device is measured as a maximum dimension of the smallest cuboid shape into which the device fits****.*

Examples for the basis for the amendments can be found in the following paragraphs:
"Where, in some embodiments, an extent of the device is measured as a maximum dimension of a smallest cuboid shape into which the device fits." Page 32, lines 19-20

Claim 13 has been amended to recite:
13. The ophthalmic device according to any one of claims 1-12, wherein ***the device is configured to reside on a bulbar conjunctiva and underneath the eyelid during opening and closing of the eye****.*

Examples for the basis for the amendments can be found in the following paragraphs:

"In some embodiments, the device is configured to reside on a bulbar conjunctiva and underneath the eyelid. For example, during opening and closing of the eye (e.g. blinking)." Page 15, lines 26-28

Claim 15 has been amended to recite:
15. The ophthalmic device according to any one of claims 1-14, wherein ***said height difference is in a direction moving away from an edge of said body, wherein said edge of said body is a leading edge of said body disposed adjacent to an opening of an eyelid when said ophthalmic device is worn underneath said eyelid****.*

Examples for the basis for the amendments can be found in the following paragraphs:
"Example 7. The ophthalmic device according to any one of examples 1-6, wherein said height difference is in a direction moving away from an edge of said body." Page 2, lines 19-20
"Example 12. The ophthalmic device according to example 7 or example 9, wherein said edge of said body is a leading edge of said body disposed adjacent to an opening of an eyelid when said ophthalmic device is worn underneath said eyelid." Page 2, lines 30-32
Original PCT claims 7 and 12 are also referred to.

Remarks

Clarity

Regarding point 2, the examining division has stated that claim 1 is not clear for several reasons. In general, the applicant asserts that the amendment made to claim 1, together with the arguments below, should overcome the clarity concerns brought up by the examining division.

In point 2.1, the examining division argues that the word "distance" renders the claim unclear. Respectfully, the applicant disagrees, at least in the context of the single measurement reference recited in the amended claim. The applicant asserts that the skilled person would have no difficulty in determining whether the claimed geometric condition is satisfied. Claim 1 defines the relevant heights relative to a reference plane, namely the plane on which the relaxed device rests. In normal geometric usage, a height relative to a plane is the perpendicular distance from that plane to the relevant point on the anterior surface. Since the claim defines a minimum height difference over a maximum distance, the skilled person would identify the region of greatest macroscopic incline on the anterior surface of the body and determine the height profile of the anterior surface in that region relative to the plane. The skilled person would then assess whether that profile contains two locations at most 1 mm apart, for which the respective heights differ by at least 1 mm. If no such pair of locations exists in that steepest region, flatter regions of the same device necessarily cannot satisfy the claimed condition. The claim therefore defines an objective and practically assessable geometric condition by which the skilled person can determine whether a given device falls inside or outside the claim.

In point 2.2, the examining division argued in relation to the last paragraph of claim 1.

In relation to point 2.2.1, the examining division argues that the "or" language, while allowed, renders the claim unclear as it makes the measurement definition very

convoluted. Without agreeing with the examining division and in order to allow for a positive continuation of the prosecution, the applicant has chosen to cancel the last two measurement definitions, leaving only one measurement definition.

In relation to point 2.2.2, the examining division argues that the language “relaxed device” renders the claim unclear. Respectfully, the applicant disagrees. The applicant asserts that the phrase “a plane on which the relaxed device rests” is clear to the skilled person in the present context. The context is a measurement of height relative to a plane on which the device rests. In that context, the skilled person would understand the expression “the relaxed device” as referring to the device outside the eye and in the absence of external deformation or compressive load, so that the device assumes its unstressed shape. Read in that manner, the phrase conveys a clear and technically sensible measurement condition and does not leave room for any reasonable alternative interpretation.

In relation to point 2.2.3, the examining division argued to the language “place connecting at least 80% of a circumference of the device”. Without agreeing with the examining division and in order to allow for a positive continuation of the prosecution, the applicant has chosen to cancel the last two measurement definitions, leaving only one measurement definition, said cancellation comprises also the aforementioned argued language.

In relation to point 2.2.4, the examining division argued to the language “curve surface on which the relaxed device rests”. Without agreeing with the examining division and in order to allow for a positive continuation of the prosecution, the applicant has chosen to cancel the last two measurement definitions, leaving only one measurement definition, said cancellation comprises also the aforementioned argued language.

In relation to point 2.2.5, the examining division argued grammatically to the language “…, and having a height difference”. The applicant has amended the claims to recite “**said retention portion** having a height difference” – thereby correcting any grammatical doubt.

Novelty and inventive step

Documents cited by the examining division:
D6 - US 5 912 719 A (BAUDE DOMINIQUE [FR] ET AL) 15 June 1999 (1999-06-15)
D7 - WO 2021/144820 A1 (LEONARDO VISION S R L [IT]) 22 July 2021 (2021-07-22)

In point 3, the examining division has stated that claim 1 is not novel over D6 or D7. Respectfully, the applicant asserts that currently amended claim 1 overcomes this rejection.

Both D6 and D7 describe contact lenses intended to rest on the cornea of the eye. By contrast, amended claim 1 requires that the ophthalmic device is configured to reside on a bulbar conjunctiva and underneath the eyelid. The cornea is anatomically distinct from the bulbar conjunctiva, and neither D6 nor D7 discloses a device configured to reside on the bulbar conjunctiva underneath the eyelid. Claim 1 is therefore novel.

The same feature also establishes inventive step. Starting from either D6 or D7, the skilled person would not modify the disclosed device so that it is configured to reside on a bulbar conjunctiva and underneath the eyelid. Both in D6 and in D7, such a modification would depart from the disclosed mode of use of the device as a contact lens.

Thus, starting from either D6 or D7, the skilled person would not arrive at a device configured to reside on a bulbar conjunctiva and underneath the eyelid. The subject-matter of claim 1 therefore involves an inventive step.

Conclusion

In light of the amendments and comments that are filed herewith, Applicant believes that the present application is allowable. We therefore look forward to an acknowledgement of this from the Examiner. However, if any minor matter is outstanding in the claims, then Applicant invites the Examiner to telephone the undersigned representative or to issue another Communication under Article 94(3) EPC.

By way of precaution, Applicant requests Oral Proceedings in the event that the Examining Division forms an intention to refuse the present application.

As a further precaution, it is hereby expressly stated that any amendment to the present application, including any deletion, does not amount to an abandonment of any of the subject matter within the application as filed, and that the right to restore deleted subject matter, and/or to file one or more divisional applications in respect of any of the subject matter in the application as filed, is hereby maintained.

Yours faithfully

Andrea R McShane
For and on behalf of
MATHYS & SQUIRE
Association No 171

Enc: Amended Claims (clean and marked up)

/eja